

Sex and the Valley

High court pulls up CBI for inapt handling of the Srinagar sex scandal and failure to take action against the high and mighty

For a state where militant violence and encounters mark daily life, a sex scandal has provided, a periodic diversion. The scandal broke in April last year but was back in news last week when a division bench of the Jammu and Kashmir High Court pulled up the Central Bureau of Investigation (CBI) for the "lax and deficient" manner in which it handled the case and failed to take action against some of the high-profile people involved. What set the cat among the political and administrative pigeons was the fact that the judgement sought evidence against eight new accused—including state's Transport Minister Hakim Muhammad Yasin, former People's Democratic Party (PDP) minister Ghulam Hassan Khan, former Congress minister and MLA Yogesh Sawhney and three IPS officers. The court also directed CBI to conduct "speedy and focused investigations" in the cases of former chairman of Jammu and Kashmir Bank M.Y. Khan and Rajinder Tikoo, the then vigilance commissioner. Many more senior politicians, bureaucrats and police officials have been found to be involved.

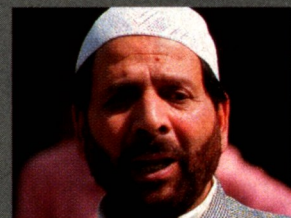
Yet it isn't so much the new names as is the absence of these names from the CBI list of people against whom action was taken, which is surprising. The new judgement seems to vindicate the allegations by women's separatist group, Dukhtaran-e-Millat (daughters of faith) that "the small fish were caught while the sharks are still free". The scandal originated in the Habbakadal locality of the Old City where elders took some CDs containing explicit scenes of a young girl to the local police station. Upon interrogation, the girl revealed how she had been forced into the sex racket. Subsequently, the scandal unravelled the names of politicians, police and security officials. The then deputy chief minister and PDP leader Muzaffar Hussain Baig went on record saying the racket had roots in the insurgency

when Kashmiri girls were used as honey traps against militants. Those who are privy to disclosures made by the accused from the paramilitary forces and the police also concur. Increasingly, it appears that the sex scandal flourished as security agencies looked for informers during the early years of militancy.

of the coalition Government, a senior bureaucrat, a top BSF officer, two police officers, besides Sabeena and her husband last year. Subsequently, the Srinagar High Court Bar Association resolved that lawyers wouldn't appear for the accused. The trial was shifted to Chandigarh where 11 of the accused managed to get bail.

Now, a 200-page high court judgement; the latest twist in the scandal, reprimands CBI for not having investigated the case proficiently. Apparently, CBI hadn't even taken into account the primary probe conducted by the state police. Now that the probe and trial will widen, the political fallout has

Transport Minister Hakim Muhammad Yasin (right) was among the accused but CBI is yet to find evidence against him.



SEEKING JUSTICE : Dukhtaran-e-Millat demanding a fair probe

Investigations reveal that Sabeena, the alleged kingpin, was assisted by a surrendered militant, Merajjudin, who drugged the girls or offered them monetary inducements, filmed them in compromising positions and then forced them into prostitution. Mounting public pressure and waning credibility forced the Government to hand the case over to CBI. The investigating agency arrested 18 of the accused including two MLAs, former ministers

begun. PDP immediately suspended Khan who is mentioned in the judgement. Observers say that PDP is attempting to retain the moral high ground it had occupied vis-à-vis the case over the alleged involvement of an MLA of Congress, its ruling partner.

When the case was first handed over to CBI, it had quickly managed to arrest many politicians, bureaucrats and police officials. It seems the state Government which struggles against militancy, will now have to fight charges of exploitation. **by Aijaz Hussain**